

23SMCV05353 23SMCV05353

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TENTATIVE RULING

September 18, 2026

23SMCV05353

(Atkins v. 24300 Malibu Road, LLC, et. al.)

RELEVANT BACKGROUND

On November 13, 2023, plaintiff Lucas Atkins (Plaintiff) filed his complaint against 24300 Malibu Road, LLC (Malibu), D. Luxe Villas, LLC (Luxe), Alexis Drabkin (Drabkin), Chuck A. Kloeris (Kloeris), and Does 1-10, alleging eight causes of action: 1) Breach of Lease; 2) Breach of the Covenant of Good Faith and Fair Dealing; 3) Breach of the Implied Warranty of Habitability; 4) Breach of the Implied Covenant Of Quiet Enjoyment; 5) Bad Faith Retention of Security Deposit; 6) Fraudulent Inducement; 7) Intentional Misrepresentation; 8) Negligent Misrepresentation.

On April 12, 2024, Plaintiff filed an amendment to the complaint to name Compass Inc. (Compass) as a Doe defendant.

This lawsuit arises out of Plaintiff's short-term rental of the property located at 24300 Malibu Road, Malibu, California (the Property). Plaintiff alleges that he leased the Property through Drabkin, who at the time was a real estate agent affiliated with Compass, and that Drabkin made several misrepresentations about the Property. Plaintiff contends that he paid too much to lease the Property (i.e.,

above market price), and that the home was not as represented.

On April 19, 2024,

Malibu and Kloeris filed a cross complaint against Plaintiff, Luxe, and Drabkin.

Malibu and Kloeris allege that Drabkin had no authority to act on the Malibu's behalf in leasing out the Property to Plaintiff.

On July 15, 2025,

Plaintiff amended the complaint to name Cody Keltz (Keltz) and stayLA Luxury Rentals, Inc. (StayLA) as Doe defendants.

On August 26, 2024,

Malibu and Kloeris filed an amended cross-complaint.

On June 27, 2025,

Compass filed a cross-complaint against Drabkin, alleging four causes of action: 1) Express Indemnity; 2) Equitable Indemnity; 3) Contribution; 4) Declaratory Relief

INSTANT MOTION

On June 22, 2026, Compass filed the instant

motion for leave to file a first amended cross-complaint (FACC). No opposition has been filed. On August 7, 2026, Compass filed a notice of non-opposition.

DISCUSSION

"A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) The court's discretion will usually be exercised liberally to permit amendments of the pleadings. (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.)² "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Courts may grant a motion to amend as late as the time of trial and even postpone the trial if necessary to the furtherance of justice. (Honig v. Financial Corp. of America (1992) 6 Cal. App. 4th 960, 965.)

Under Rule 3.1324, subdivision (a)

of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under

Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

Here,

Compass seeks leave to bring a FACC for indemnity and contribution against Entourage Collection Inc. (Entourage) on the basis that Entourage was recently identified as a key party in this lawsuit during depositions on June 8, 2026, and June 9, 2026, of Plaintiff and the Landlord's Person Most Qualified. Specifically, it was confirmed that Plaintiff hired Entourage as his travel agent to find him a suitable and appropriately priced short-term vacation rental in the summer of 2023. Entourage found the Property for Plaintiff and entered into a contract with D. Luxe Villas for Plaintiff to rent the Property. Compass states that, if Plaintiff suffered any damages because the Property was not appropriate and too expensive, the party at fault is Entourage because Plaintiff relied on Entourage to assist him with selecting the Property. Compass argues that it is in the interests of justice to have all matters arising from the same transaction and occurrence litigated in a single lawsuit. The Court agrees.

The

Court finds that leave to amend is appropriate. Compass has complied with California Rules of Court, rule 3.1324 by providing the Declaration of Pamela Albanese, which includes a copy of the proposed amendment. (See Albanese Decl. ¶ 7, Ex. C.) Compass

explains that Entourage was recently identified during depositions as a key party in this lawsuit and that Compass only recently learned the extent of Plaintiff's relationship with Entourage as well as Plaintiff's reliance on Entourage. The Court finds no prejudice exists. Trial is not set to begin until June 7, 2027, discovery is ongoing, and no dispositive motions have been heard. The Court notes that no opposition has been filed to the instant motion.

Accordingly,

Compass' unopposed motion for leave to file a FACC is GRANTED.

Compass

may have thirty (30) days to file and serve an amended cross-complaint.